

STATE OF NEW YORK

10454--A

IN ASSEMBLY

March 6, 2026

Introduced by M. of A. KELLES -- read once and referred to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law and the public officers law, in relation to establishing a school speed zone camera demonstration program in the city of Ithaca; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The vehicle and traffic law is amended by adding a new
2 section 1180-i to read as follows:

3 § 1180-i. Owner liability for failure of operator to comply with
4 certain posted maximum speed limits; city of Ithaca. (a) 1. Notwith-
5 standing any other provision of law, the city of Ithaca is hereby
6 authorized to establish a demonstration program imposing monetary
7 liability on the owner of a vehicle for failure of an operator thereof
8 to comply with posted maximum speed limits in a school speed zone within
9 such city (i) when a school speed limit is in effect as provided in
10 paragraphs one and two of subdivision (c) of section eleven hundred
11 eighty of this article or (ii) when other speed limits are in effect as
12 provided in subdivision (b), (d), (f) or (g) of section eleven hundred
13 eighty of this article during the following times: (A) on school days
14 during school hours and one hour before and one hour after the school
15 day, and (B) a period during student activities at the school and up to
16 thirty minutes immediately before and up to thirty minutes immediately
17 after such student activities. Such demonstration program shall empower
18 the city of Ithaca to install photo speed violation monitoring systems
19 within no more than twelve school speed zones within such city at any
20 one time and to operate such systems within such zones (iii) when a
21 school speed limit is in effect as provided in paragraphs one and two of
22 subdivision (c) of section eleven hundred eighty of this article or (iv)
23 when other speed limits are in effect as provided in subdivision (b),
24 (d), (f) or (g) of section eleven hundred eighty of this article during
25 the following times: (A) on school days during school hours and one hour

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 before and one hour after the school day, and (B) a period during
2 student activities at the school and up to thirty minutes immediately
3 before and up to thirty minutes immediately after such student activ-
4 ities. In selecting a school speed zone in which to install and operate
5 a photo speed violation monitoring system, the city shall consider
6 criteria including, but not limited to, the speed data, crash history,
7 and the roadway geometry applicable to such school speed zone.

8 2. No photo speed violation monitoring system shall be used in a
9 school speed zone unless (i) on the day it is to be used it has success-
10 fully passed a self-test of its functions; and (ii) it has undergone an
11 annual calibration check performed pursuant to paragraph four of this
12 subdivision. The city shall install signs giving notice that a photo
13 speed violation monitoring system is in use to be mounted on advance
14 warning signs notifying motor vehicle operators of such upcoming school
15 speed zone and/or on speed limit signs applicable within such school
16 speed zone, in conformance with standards established in the MUTCD.

17 3. Operators of photo speed violation monitoring systems shall have
18 completed training in the procedures for setting up, testing, and oper-
19 ating such systems. Each such operator shall complete and sign a daily
20 set-up log for each such system that the operator operates that (i)
21 states the date and time when, and the location where, the system was
22 set up that day, and (ii) states that such operator successfully
23 performed, and the system passed, the self-tests of such system before
24 producing a recorded image that day. The city shall retain each such
25 daily log until the later of the date on which the photo speed violation
26 monitoring system to which it applies has been permanently removed from
27 use or the final resolution of all cases involving notices of liability
28 issued based on photographs, microphotographs, videotape or other
29 recorded images produced by such system.

30 4. Each photo speed violation monitoring system shall undergo an annu-
31 al calibration check performed by an independent calibration laboratory
32 which shall issue a signed certificate of calibration. The city shall
33 keep each such annual certificate of calibration on file until the final
34 resolution of all cases involving a notice of liability issued during
35 such year which were based on photographs, microphotographs, videotape
36 or other recorded images produced by such photo speed violation monitor-
37 ing system.

38 5. (i) Such demonstration program shall utilize necessary technologies
39 to ensure, to the extent practicable, that photographs, microphoto-
40 graphs, videotape or other recorded images produced by such photo speed
41 violation monitoring systems shall not include images that identify the
42 driver, the passengers, or the contents of the vehicle. Provided,
43 however, that no notice of liability issued pursuant to this section
44 shall be dismissed solely because such a photograph, microphotograph,
45 videotape or other recorded image allows for the identification of the
46 driver, the passengers, or the contents of vehicles where the city shows
47 that it made reasonable efforts to comply with the provisions of this
48 paragraph in such case.

49 (ii) Photographs, microphotographs, videotape or any other recorded
50 image from a photo speed violation monitoring system shall be for the
51 exclusive use of the city for the purpose of the adjudication of liabil-
52 ity imposed pursuant to this section and of the owner receiving a notice
53 of liability pursuant to this section, and shall be destroyed by the
54 city upon the final resolution of the notice of liability to which such
55 photographs, microphotographs, videotape or other recorded images
56 relate, or one year following the date of issuance of such notice of

1 liability, whichever is later. Notwithstanding the provisions of any
2 other law, rule or regulation to the contrary, photographs, microphoto-
3 graphs, videotape or any other recorded image from a photo speed
4 violation monitoring system shall not be open to the public, nor subject
5 to civil or criminal process or discovery, nor used by any court or
6 administrative or adjudicatory body in any action or proceeding therein
7 except that which is necessary for the adjudication of a notice of
8 liability issued pursuant to this section, and no public entity or
9 employee, officer or agent thereof shall disclose such information,
10 except that such photographs, microphotographs, videotape or any other
11 recorded images from such systems:

12 (A) shall be available for inspection and copying and use by the motor
13 vehicle owner and operator for so long as such photographs, microphoto-
14 graphs, videotape or other recorded images are required to be maintained
15 or are maintained by such public entity, employee, officer or agent; and

16 (B) (1) shall be furnished when described in a search warrant issued
17 by a court authorized to issue such a search warrant pursuant to article
18 six hundred ninety of the criminal procedure law or a federal court
19 authorized to issue such a search warrant under federal law, where such
20 search warrant states that there is reasonable cause to believe such
21 information constitutes evidence of, or tends to demonstrate that, a
22 misdemeanor or felony offense was committed in this state or another
23 state, or that a particular person participated in the commission of a
24 misdemeanor or felony offense in this state or another state, provided,
25 however, that if such offense was against the laws of another state, the
26 court shall only issue a warrant if the conduct comprising such offense
27 would, if occurring in this state, constitute a misdemeanor or felony
28 against the laws of this state; and

29 (2) shall be furnished in response to a subpoena duces tecum signed by
30 a judge of competent jurisdiction and issued pursuant to article six
31 hundred ten of the criminal procedure law or a judge or magistrate of a
32 federal court authorized to issue such a subpoena duces tecum under
33 federal law, where the judge finds and the subpoena states that there is
34 reasonable cause to believe such information is relevant and material to
35 the prosecution, or the defense, or the investigation by an authorized
36 law enforcement official, of the alleged commission of a misdemeanor or
37 felony in this state or another state, provided, however, that if such
38 offense was against the laws of another state, such judge or magistrate
39 shall only issue such subpoena if the conduct comprising such offense
40 would, if occurring in this state, constitute a misdemeanor or felony in
41 this state; and

42 (3) may, if lawfully obtained pursuant to this clause and clause (A)
43 of this subparagraph and otherwise admissible, be used in such criminal
44 action or proceeding.

45 (b) If the city of Ithaca establishes a demonstration program pursuant
46 to subdivision (a) of this section, the owner of a vehicle shall be
47 liable for a penalty imposed pursuant to this section if such vehicle
48 was used or operated with the permission of the owner, express or
49 implied, within a school speed zone in violation of subdivision (c) or
50 during the times authorized pursuant to subdivision (a) of this section
51 in violation of subdivision (b), (d), (f) or (g) of section eleven
52 hundred eighty of this article, such vehicle was traveling at a speed of
53 more than ten miles per hour above the posted speed limit in effect
54 within such school speed zone, and such violation is evidenced by infor-
55 mation obtained from a photo speed violation monitoring system; provided
56 however that no owner of a vehicle shall be liable for a penalty imposed

1 pursuant to this section where the operator of such vehicle has been
2 convicted of the underlying violation of subdivision (b), (c), (d), (f)
3 or (g) of section eleven hundred eighty of this article.

4 (c) For purposes of this section, the following terms shall have the
5 following meanings:

6 1. "manual on uniform traffic control devices" or "MUTCD" shall mean
7 the manual and specifications for a uniform system of traffic control
8 devices maintained by the commissioner of transportation pursuant to
9 section sixteen hundred eighty of this chapter;

10 2. "owner" shall have the meaning provided in article two-B of this
11 chapter;

12 3. "photo speed violation monitoring system" shall mean a vehicle
13 sensor installed to work in conjunction with a speed measuring device
14 which automatically produces two or more photographs, two or more micro-
15 photographs, a videotape or other recorded images of each vehicle at the
16 time it is used or operated in a school speed zone in violation of
17 subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty
18 of this article in accordance with the provisions of this section; and

19 4. "school speed zone" shall mean a distance not to exceed one thou-
20 sand three hundred twenty feet on a highway passing a school building,
21 entrance or exit of a school abutting on the highway.

22 (d) A certificate, sworn to or affirmed by a technician employed by
23 the city of Ithaca, or a facsimile thereof, based upon inspection of
24 photographs, microphotographs, videotape or other recorded images
25 produced by a photo speed violation monitoring system, shall be prima
26 facie evidence of the facts contained therein. Any photographs, micro-
27 photographs, videotape or other recorded images evidencing such a
28 violation shall include at least two date and time stamped images of the
29 rear of the motor vehicle that include the same stationary object near
30 the motor vehicle and shall be available for inspection reasonably in
31 advance of and at any proceeding to adjudicate the liability for such
32 violation pursuant to this section.

33 (e) An owner liable for a violation of subdivision (b), (c), (d), (f)
34 or (g) of section eleven hundred eighty of this article pursuant to a
35 demonstration program established pursuant to this section shall be
36 liable for monetary penalties in accordance with a schedule of fines and
37 penalties to be promulgated by the parking violations bureau of the city
38 of Ithaca. The liability of the owner pursuant to this section shall
39 not exceed fifty dollars for each violation; provided, however, that
40 such parking violations bureau may provide for an additional penalty not
41 in excess of twenty-five dollars for each violation for the failure to
42 respond to a notice of liability within the prescribed time period.

43 (f) An imposition of liability under the demonstration program estab-
44 lished pursuant to this section shall not be deemed a conviction as an
45 operator and shall not be made part of the operating record of the
46 person upon whom such liability is imposed nor shall it be used for
47 insurance purposes in the provision of motor vehicle insurance coverage.

48 (g) 1. A notice of liability shall be sent by first class mail to each
49 person alleged to be liable as an owner for a violation of subdivision
50 (b), (c), (d), (f) or (g) of section eleven hundred eighty of this arti-
51 cle pursuant to this section, within fourteen business days if such
52 owner is a resident of this state and within forty-five business days if
53 such owner is a non-resident. Personal delivery on the owner shall not
54 be required. A manual or automatic record of mailing prepared in the
55 ordinary course of business shall be prima facie evidence of the facts
56 contained therein.

1 2. A notice of liability shall contain the name and address of the
2 person alleged to be liable as an owner for a violation of subdivision
3 (b), (c), (d), (f) or (g) of section eleven hundred eighty of this arti-
4 cle pursuant to this section, the registration number of the vehicle
5 involved in such violation, the location where such violation took
6 place, the date and time of such violation, the identification number of
7 the camera which recorded the violation or other document locator
8 number, at least two date and time stamped images of the rear of the
9 motor vehicle that include the same stationary object near the motor
10 vehicle, and the certificate charging the liability.

11 3. The notice of liability shall contain information advising the
12 person charged of the manner and the time in which the person may
13 contest the liability alleged in the notice. Such notice of liability
14 shall also contain a prominent warning to advise the person charged that
15 failure to contest in the manner and time provided shall be deemed an
16 admission of liability and that a default judgment may be entered there-
17 on.

18 4. The notice of liability shall be prepared and mailed by the city of
19 Ithaca parking violations bureau, or by any other entity authorized by
20 the city to prepare and mail such notice of liability.

21 (h) Adjudication of the liability imposed upon owners of this section
22 shall be by the city of Ithaca parking violations bureau.

23 (i) If an owner receives a notice of liability pursuant to this
24 section for any time period during which the vehicle or the number plate
25 or plates of such vehicle was reported to the police department as
26 having been stolen, it shall be a valid defense to an allegation of
27 liability for a violation of subdivision (b), (c), (d), (f) or (g) of
28 section eleven hundred eighty of this article pursuant to this section
29 that the vehicle or the number plate or plates of such vehicle had been
30 reported to the police as stolen prior to the time the violation
31 occurred and had not been recovered by such time. For purposes of
32 asserting the defense provided by this subdivision, it shall be suffi-
33 cient that a certified copy of the police report on the stolen vehicle
34 or number plate or plates of such vehicle be sent by first class mail to
35 the city of Ithaca parking violations bureau or by any other entity
36 authorized by the city to prepare and mail such notice of liability.

37 (j) 1. An owner who is a lessor of a vehicle to which a notice of
38 liability was issued pursuant to subdivision (g) of this section shall
39 not be liable for the violation of subdivision (b), (c), (d), (f) or (g)
40 of section eleven hundred eighty of this article pursuant to this
41 section, provided that:

42 (i) prior to the violation, the lessor has filed with such parking
43 violations bureau in accordance with the provisions of section two
44 hundred thirty-nine of this chapter; and

45 (ii) within thirty-seven days after receiving notice from such bureau
46 of the date and time of a liability, together with the other information
47 contained in the original notice of liability, the lessor submits to
48 such bureau the correct name and address of the lessee of the vehicle
49 identified in the notice of liability at the time of such violation,
50 together with such other additional information contained in the rental,
51 lease or other contract document, as may be reasonably required by such
52 bureau pursuant to regulations that may be promulgated for such purpose.

53 2. Failure to comply with subparagraph (ii) of paragraph one of this
54 subdivision shall render the owner liable for the penalty prescribed in
55 this section.

3. Where the lessor complies with the provisions of paragraph one of this subdivision, the lessee of such vehicle on the date of such violation shall be deemed to be the owner of such vehicle for purposes of this section, shall be subject to liability for such violation pursuant to this section and shall be sent a notice of liability pursuant to subdivision (g) of this section.

(k) 1. If the owner liable for a violation of subdivision (c) or (d) of section eleven hundred eighty of this article pursuant to this section was not the operator of the vehicle at the time of the violation, the owner may maintain an action for indemnification against the operator.

2. Notwithstanding any other provision of this section, no owner of a vehicle shall be subject to a monetary fine imposed pursuant to this section if the operator of such vehicle was operating such vehicle without the consent of the owner at the time such operator operated such vehicle in violation of subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty of this article. For purposes of this subdivision there shall be a presumption that the operator of such vehicle was operating such vehicle with the consent of the owner at the time such operator operated such vehicle in violation of subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty of this article.

(l) Nothing in this section shall be construed to limit the liability of an operator of a vehicle for any violation of subdivision (c) or (d) of section eleven hundred eighty of this article.

(m) If the city adopts a demonstration program pursuant to subdivision (a) of this section it shall conduct a study and submit an annual report on the results of the use of photo devices to the governor, the temporary president of the senate and the speaker of the assembly on or before the first day of June next succeeding the effective date of this section and on the same date in each succeeding year in which the demonstration program is operable. Such report shall include:

1. the locations where and dates when photo speed violation monitoring systems were used;

2. the aggregate number, type and severity of crashes, fatalities, injuries and property damage reported within all school speed zones within the city, to the extent the information is maintained by the department of motor vehicles of this state;

3. the aggregate number, type and severity of crashes, fatalities, injuries and property damage reported within school speed zones where photo speed violation monitoring systems were used, to the extent the information is maintained by the department of motor vehicles of this state;

4. the number of violations recorded within all school speed zones within the city, in the aggregate on a daily, weekly and monthly basis;

5. the number of violations recorded within each school speed zone where a photo speed violation monitoring system is used, in the aggregate on a daily, weekly and monthly basis;

6. the number of violations recorded within all school speed zones within the city that were:

(i) more than ten but not more than twenty miles per hour over the posted speed limit;

(ii) more than twenty but not more than thirty miles per hour over the posted speed limit;

(iii) more than thirty but not more than forty miles per hour over the posted speed limit; and

(iv) more than forty miles per hour over the posted speed limit;

1 7. the number of violations recorded within each school speed zone
2 where a photo speed violation monitoring system is used that were:

3 (i) more than ten but not more than twenty miles per hour over the
4 posted speed limit;

5 (ii) more than twenty but not more than thirty miles per hour over the
6 posted speed limit;

7 (iii) more than thirty but not more than forty miles per hour over the
8 posted speed limit; and

9 (iv) more than forty miles per hour over the posted speed limit;

10 8. the total number of notices of liability issued for violations
11 recorded by such systems;

12 9. the number of fines and total amount of fines paid after the first
13 notice of liability issued for violations recorded by such systems;

14 10. the number of violations adjudicated and the results of such adju-
15 dications including breakdowns of dispositions made for violations
16 recorded by such systems;

17 11. the total amount of revenue realized by the city in connection
18 with the program;

19 12. the expenses incurred by the city in connection with the program;
20 and

21 13. the quality of the adjudication process and its results.

22 (n) It shall be a defense to any prosecution for a violation of subdi-
23 vision (b), (c), (d), (f) or (g) of section eleven hundred eighty of
24 this article pursuant to this section that such photo speed violation
25 monitoring system was malfunctioning at the time of the alleged
26 violation.

27 § 2. Subdivision 2 of section 87 of the public officers law is amended
28 by adding a new paragraph (x) to read as follows:

29 (x) are photographs, microphotographs, videotape or other recorded
30 images prepared under the authority of section eleven hundred eighty-i
31 of the vehicle and traffic law.

32 § 3. The purchase or lease of equipment for a demonstration program
33 established pursuant to section 1180-i of the vehicle and traffic law,
34 as added by section one of this act, shall be subject to the provisions
35 of section 103 of the general municipal law.

36 § 4. This act shall take effect on the thirtieth day after it shall
37 have become a law and shall expire December 31, 2031, when upon such
38 date the provisions of this act shall be deemed repealed. Effective
39 immediately, the addition, amendment and/or repeal of any rule or regu-
40 lation necessary for the implementation of this act on its effective
41 date are authorized to be made and completed on or before such effective
42 date.